

ELIZABETH II



1967 CHAPTER xxxix

An Act to empower the London Transport Board to construct works and to acquire lands; to extend the time for the compulsory purchase of certain lands; to confer further powers on the Board; and for other purposes.
[27th July 1967]

WHEREAS by the Transport Act, 1962, the London 1962 c. 46.
Transport Board (in this Act referred to as "the Board")
were established:

And whereas it is the duty of the Board under the Transport Act, 1962, (inter alia) to provide or secure the provision of an adequate and properly co-ordinated system of passenger transport for the London Passenger Transport Area and to have due regard to efficiency, economy and safety of operation as respects the services and facilities provided by them:

And whereas it is expedient that the period now limited for the compulsory purchase of certain lands should be extended as provided by this Act:

And whereas it is expedient that the Board should be empowered to construct the works authorised by this Act and to acquire the lands referred to in this Act:

And whereas it is expedient that the other powers in this Act contained should be conferred upon the Board and that the other provisions in this Act contained should be enacted:

And whereas plans and sections showing the lines or situations and levels of the works to be constructed under the powers of this Act, and plans of the lands authorised to be acquired or used by this Act, and a book of reference to such plans containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of the said lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office of the House of Commons and with the clerk of the Greater London Council, which plans, sections and book of reference are respectively referred to in this Act as the deposited plans, the deposited sections and the deposited book of reference:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

PART I

PRELIMINARY

- | | |
|-----------------------------|---|
| Short title. | 1. This Act may be cited as the London Transport Act 1967. |
| Division of Act into Parts. | 2. This Act is divided into Parts as follows:—
Part I.—Preliminary.
Part II.—Works.
Part III.—Lands.
Part IV.—Protective provisions.
Part V.—Miscellaneous. |
| Interpretation. | 3.—(1) In this Act, unless there be something in the subject or context repugnant to such construction, the several words and expressions to which meanings are assigned by the Acts wholly or partly incorporated herewith have in relation to the relative subject-matter the same respective meanings and— |
| 1845 c. 20. | “ the Act of 1845 ” means the Railways Clauses Consolidation Act, 1845; |
| 1863 c. 92. | “ the Act of 1863 ” means the Railways Clauses Act, 1863; |
| 1950 c. 39. | “ the Act of 1950 ” means the Public Utilities Street Works Act, 1950; |

- “ the Act of 1961 ” means the British Transport Commission Act, 1961;
- “ the Act of 1963 ” means the London Transport Act, 1963; 1961 c. xxxvi.
1963 c. xxiv.
- “ the Act of 1964 ” means the London Transport Act, 1964 c. xxvi.
1964;
- “ the Act of 1965 ” means the London Transport Act, 1965 c. xli.
1965;
- “ the Act of 1966 ” means the London Transport Act, 1966 c. xxxiii.
1966;
- “ the Board ” means the London Transport Board;
- “ constructed in tunnel ” means constructed in tunnel in such manner as does not necessitate the cutting through or removal of the surface soil;
- “ enactment ” includes any public general, local or private Act and any order or other instrument having the force of an Act;
- “ the limits of deviation ” means the limits of deviation shown on the deposited plans;
- “ the Minister ” means the Minister of Transport;
- “ the tribunal ” means the Lands Tribunal;
- “ underground work ” means such portions of Work No. 1 and any necessary works and conveniences connected therewith as are constructed in tunnel;
- “ Work No. 1 ” means Work No. 1 authorised by this Act;
- “ the works ” means the works authorised by Part II (Works) of this Act.

(2) Any reference in this Act to any enactment shall be construed as a reference to that enactment as applied, extended, amended or varied by, or by virtue of, any subsequent enactment, including this Act.

(3) All distances and lengths stated in any description of works, powers or lands, shall be construed as if the words “ or thereabouts ” were inserted after each such distance and length and distances between points on a railway shall be taken to be measured along the railway.

4. The following Acts and Parts of Acts, so far as the same are applicable for the purposes and are not inconsistent with or varied by the provisions of this Act, are incorporated with and form part of this Act, and this Act shall be deemed to be the special Act for the purposes of the said incorporated enactments:—

- (a) the Lands Clauses Acts, except sections 127 to 133 of the 1845 c. 18. Lands Clauses Consolidation Act, 1845;

PART I
—cont.

(b) the Act of 1845, except sections 7, 8, 9, 11, 12, 13, 19, 20, 22 and 23 thereof; and

(c) Part I (relating to construction of a railway) and Part II (relating to extension of time) of the Act of 1863:

Provided that—

(i) for the purposes of the provisions of the Act of 1845 and the Act of 1863 as incorporated with this Act, the expression “the company” where used in the said incorporated provisions means the Board;

(ii) the provisions of sections 18 and 21 of the Act of 1845 as incorporated with this Act shall not extend to regulate the relations between the Board and any other person in respect of any matter or thing concerning which those relations are regulated in any respect—

(A) by the provisions of Part II of the Act of 1950; or

(B) by the provisions of section 42 (For protection of gas, water and electricity undertakers) of the Act of 1963 as incorporated with this Act.

PART II

WORKS

Power to
make works.

5. Subject to the provisions of this Act, the Board may, in the lines or situations shown on the deposited plans and according to the levels shown on the deposited sections, make and maintain the work hereinafter described with all necessary works and conveniences connected therewith:—

In Greater London—

In the London boroughs of Hillingdon and Hounslow—

Work No. 1 A railway (3 miles 1,100 yards in length), commencing in the London borough of Hillingdon beneath Heathrow Airport, London, at a point 231 yards north of the junction of Chester Road and Inner Ring West and terminating in the London borough of Hounslow by a junction with the Piccadilly Line railway at a point 452 yards east of the termination of that railway at Hounslow West station.

Power to
deviate.

6. In the execution of any, or any part, of the works shown on the deposited plans the Board may deviate from the lines or situations thereof shown on the deposited plans to the extent of the limits of deviation and may deviate vertically from the levels shown on the deposited sections to such extent as may be found necessary or convenient:

Provided that where the works are beneath any part of the A.30 trunk road the Board shall not deviate upwards from those levels without the consent of the Minister.

7. Subject to the provisions of this Act, the Board may, for the purpose of constructing Work No. 1, enter upon, open, break up and interfere with so much of the surface of the following streets in the London borough of Hounslow as is within the limits of deviation:—

PART II
—cont.

Power to
open surface
of streets.

Hatton Road,
Woodfield Road,
The Parkway,
Service road on north side of Great South West Road,
Great South West Road,
Bath Road,
Legrace Avenue,
Service road on south side of Bath Road,
Service road on north side of Bath Road,
Vicarage Farm Road.

8. Subject to the provisions of this Act, the Board may, in the construction of Work No. 1, permanently stop up and discontinue so much of the private roads known as Ambassador Close and Elm Road in the London borough of Hounslow as lies between the points marked "A" and "B" on the deposited plans and may substitute therefor a new road between the points marked "A" and "C" on the deposited plans.

Stopping up
and diversion
of private
roads.

9. The following provisions of the undermentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation
of provisions
of Acts of
1963 and
1965 relating
to works.

The Act of 1963—

- Section 7 (Repair of roads where level not permanently altered);
- Section 8 (General provisions as to mode of construction of Work No. 1);
- Section 9 (Plans, etc., to be approved by Minister before Work No. 1 commenced);
- Section 10 (Provisions as to use of electrical power);
- Section 11 (Compensation for damage by working);
- Section 15 (Power to make trial holes);
- Section 16 (Use of sewers, etc., for removing water).

The Act of 1965—

- Section 10 (Underpinning of houses near works):

Provided that—

- (i) for the purposes of this Act the references in the said section 10 of the Act of 1963, as so incorporated, to Work No. 1 authorised by that Act, shall be construed as references to Work No. 1 authorised by this Act

PART II
—cont.

1963 c. 38.

and the references in the said sections 8, 9 and 11 of the Act of 1963 to the said Work No. 1 shall be construed as references to underground work;

- (ii) the expression “river board” where used in the said section 16 of the Act of 1963, as so incorporated, shall mean a river authority established by an order under Part II of the Water Resources Act, 1963, and shall include the Conservators of the River Thames and the Lee Conservancy Catchment Board and the definition of “river board” in subsection (5) of the said section 16 shall be construed accordingly;
- (iii) nothing in the provisions of the said section 16, as so incorporated, shall be deemed to authorise the Board to abstract water from any underground strata except for the purpose of preventing interference with any engineering, building or other operations or of preventing damage to works resulting from any such operations.

PART III

LANDS

Power to
acquire lands.

10.—(1) Subject to the provisions of this Act, the Board may enter upon, take and use such of the lands delineated on the deposited plans and described in the deposited book of reference as they may require for the purposes of the works or for any purpose connected with or ancillary to their undertaking.

(2) Subject to the provisions of this Act, the Board may enter upon, use and appropriate so much of the subsoil and under-surface of any public street, road, footway or place delineated on the deposited plans and described in the deposited book of reference as shall be necessary for the purposes mentioned in subsection (1) of this section without being required to purchase the same or any easement therein or thereunder or to make any payment therefor.

Power to
acquire
subsoil or
easements
only in
certain cases.

11.—(1) Notwithstanding anything in this Act, the Board may, for the purposes of constructing, maintaining, protecting, renewing and using the works, enter upon, take and use so much of the subsoil and under-surface of or may acquire such easements or rights as they may require in, under or over—

(a) any railway, river, canal, navigation, watercourse, aqueduct, drain, dyke or sewer; or

(b) any of the lands described in the Schedule to this Act;

without being obliged or compellable to acquire any greater interest in, under or over the same respectively, and may give notice to treat in respect of such entry, taking and using and, in respect of the acquisition of any such easements or rights, describing the nature thereof and (subject to the foregoing

provisions of this section and to the other provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the acquisition of such easements or rights as if they were lands within the meaning of those Acts.

(2) (a) If, in any case where the Board enter upon, take and use the subsoil and under-surface of, or require an easement or right in or under, any of the lands described in the said schedule, they also require to take, use and pull down or open any cellar, vault, arch or other construction forming part of any such lands, they may enter upon, take and use such cellar, vault, arch or other construction for the purposes of the works and (subject to the provisions of this Act) the provisions of the Lands Clauses Acts shall extend and apply in relation to the purchase thereof as if such cellar, vault, arch or other construction were lands within the meaning of those Acts.

(b) Section 12 (Acquisition of part only of certain properties) of the Act of 1964, as incorporated with this Act, shall apply in respect of the acquisition by the Board under this subsection of any cellar, vault, arch or other construction as if the same were a part of land to which that section applies.

12.—(1) This section applies to the lands numbered on the Temporary deposited plans 130 to 197 in the London borough of Hounslow possession of (hereafter in this section referred to as “the said lands”). land.

(2) The Board may, for the purpose of enabling them in connection with the construction of Work No. 1 to reconstruct the railway embankment of the Piccadilly Line railway adjoining the said lands, enter upon and take possession temporarily of the said lands after giving to the owners, lessees and occupiers thereof not less than one month’s previous notice in writing and may remove any structures thereon and may construct temporary works and structures thereon for the aforesaid purpose:

Provided that the Board—

(a) shall not without the agreement of the owners, lessees and occupiers thereof remain in possession of the said lands under the powers of this section after a period of one year from the date of entry thereon; and

(b) shall not be empowered to purchase compulsorily or be required to purchase the said lands.

(3) Before relinquishing possession of the said lands the Board shall remove all works and structures erected by them thereon and shall, subject to any agreement to the contrary with the respective owners, lessees or occupiers thereof, reinstate the said lands so far as reasonably practicable to their condition immediately before entry thereon by the Board.

PART III
—cont.

Temporary
closure of
footpath.

13.—(1) To permit the full exercise by the Board of the powers of subsection (2) of section 12 (Temporary possession of land) of this Act in relation to the land numbered on the deposited plans 197 in the London borough of Hounslow the Board may, during the period that they are in possession of the said land under the said subsection (2), temporarily stop up and discontinue the portion of footpath over the said land between the points marked “D” and “E” on the deposited plans without providing a substitute therefor and thereupon all rights of way over or along the said portion of footpath shall be temporarily extinguished during the said period.

(2) Any person who suffers loss by such temporary extinguishment of any private right under this section shall be entitled to be paid by the Board compensation to be determined in the case of dispute under and in accordance with the Lands Clauses Acts.

Period for
compulsory
purchase of
lands and
easements.

14. The powers of the Board for the compulsory purchase of the lands and easements which they are authorised by this Act to acquire shall cease on 31st December, 1973.

Incorporation
of provisions
of Acts of 1963,
1964, 1965 and
1966 relating
to lands.

15. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

The Act of 1963—

Section 21 (Power to enter for survey or valuation);

Section 26 (Grant of easements by persons under disability); and

Section 28 (As to cellars under streets not referenced).

The Act of 1964—

Section 12 (Acquisition of part only of certain properties);

Section 13 (Disregard of recent improvements and interests); and

Section 14 (Extinction of private rights of way).

The Act of 1965—

Section 13 (Correction of errors in deposited plans and book of reference).

The Act of 1966—

Section 14 (Power to expedite entry):

Provided that—

- (i) the provisions of the said section 21 of the Act of 1963, as so incorporated, shall have effect as if after the word “acquire” there were inserted the words “or use”;

- (ii) the provisions of the said section 13 of the Act of 1964, as so incorporated, shall have effect as if for the reference therein to 5th December, 1963, there was substituted a reference to 5th December, 1966;
- (iii) the provisions of the said section 13 of the Act of 1965, as so incorporated, shall have effect as if the reference in subsection (1) thereof to a metropolitan stipendiary magistrate included a reference to two justices having jurisdiction in the London boroughs of Hillingdon and Hounslow and subsection (2) thereof were construed with the necessary alterations accordingly.

PART IV

PROTECTIVE PROVISIONS

16. The following provisions of the under-mentioned Acts are incorporated with, and form part of this Part of, this Act:—

Incorporation
of protective
provisions of
Acts of 1963
and 1965.

The Act of 1963—

Section 31 (For protection of Postmaster General);

Subsections (1) and (3) of section 32 (For further protection of Postmaster General); and

Section 42 (For protection of gas, water and electricity undertakers).

The Act of 1965—

Section 25 (As to works within Metropolitan Police District);

Section 27 (For protection of sewers of Greater London Council);

Section 28 (As to metropolitan roads and road traffic, etc.):

Provided that—

- (i) the provisions of the said section 31 of the Act of 1963, as so incorporated, shall have effect as if for the references therein to Work No. 1 authorised by the Act of 1963 there were substituted references to Work No. 1 authorised by this Act;
- (ii) the provisions of the said section 27 of the Act of 1965, as so incorporated, shall have effect as if—
 - (a) for the reference to “the said works” in paragraph (2) thereof there were substituted a reference to “the specified works”;
 - (b) for the reference in paragraph (7) thereof to section 11 (Incorporation of provisions of Act of 1963 relating to works) there were substituted a reference to section 9 (Incorporation of provisions of Acts of 1963 and 1965 relating to works) of this Act; and
 - (c) paragraph (12) was omitted;

PART IV
—cont.

(iii) the provisions of the said section 28 of the Act of 1965, as so incorporated, shall have effect as if—

(a) in paragraph (3) the words “(except in the case of Work No. 1)” were omitted; and

(b) in paragraph (7) the words “for that road” were inserted after the word “loading” and the proviso at the end thereof were omitted.

Crown
rights.

17.—(1) Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and in particular and without prejudice to the generality of the foregoing nothing in this Act authorises the Board to take, use or in any manner interfere with any land or hereditaments or any rights of whatsoever description—

(a) belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those commissioners on behalf of Her Majesty first had and obtained for that purpose; or

(b) belonging to a government department or held in trust for Her Majesty for the purposes of a government department without the consent in writing of that government department.

(2) Nothing in this section shall prejudice or affect any statutory powers of the Board to carry out any works by reason only that such works involve or are likely to involve—

(a) the breaking open of a street in relation to which the provisions of Part II of and the Fourth Schedule to the Act of 1950 apply; or

(b) an alteration in any telegraphic line of the Postmaster General in relation to which paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878, apply.

1878 c. 76.

For protection
of Postmaster
General.

18.—(1) Where in pursuance of the powers conferred by section 8 (Stopping up and diversion of private roads) of this Act the Board stop up or discontinue any part of either road therein mentioned the following provisions of this subsection shall, unless otherwise agreed in writing between the Board and the Postmaster General, have effect in relation to so much of any telegraphic line belonging to or used by the Postmaster General as is under, in, upon, over, along or across the land which by reason of the stopping up or discontinuance ceases to be a road (in this subsection referred to as “the affected line”), that is to say:—

(a) The power of the Postmaster General to remove the affected line shall be exercisable notwithstanding the

stopping up or discontinuance of the road or part of the road so, however, that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of one month from the date of the sending of the notice referred to in the next following subsection, unless before the expiration of that period the Postmaster General has given notice to the Board of his intention to remove the affected line or that part thereof, as the case may be;

- (b) The Postmaster General may by notice in that behalf to the Board abandon the affected line or any part thereof and shall be deemed as respects the affected line or any part thereof to have abandoned it at the expiration of the said period of one month, unless before the expiration of that period he has removed it or given notice of his intention to remove it;
- (c) In any case where the Postmaster General has given notice to the Board under paragraph (a) of this subsection of his intention to remove the affected line he shall remove it with all reasonable dispatch;
- (d) The Postmaster General shall be entitled to recover from the Board the expense of providing in substitution for the affected line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line a telegraphic line in such other place as he may reasonably require;
- (e) Where under paragraph (b) of this subsection the Postmaster General has abandoned the whole or any part of the affected line it shall vest in the Board and the provisions of the Telegraph Acts, 1863 to 1962, shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

(2) As soon as practicable after the whole or any portion of a road has been stopped up or discontinued in pursuance of the powers referred to in subsection (1) of this section the Board shall send by post to the Postmaster General a notice informing him of such stopping up or diversion.

19. For the protection of the British Airports Authority (in this section referred to as “the authority”) the following provisions shall, unless otherwise agreed in writing between the Board and the authority, apply and have effect:—

For protection
of British
Airports
Authority.

(1) In this section—

“the airport” means the airport known as Heathrow;

PART IV
—cont.

“ airport property ” means the land, buildings, apparatus and any other property of whatever nature owned by the authority forming part of or held in connection with the airport;

“ apparatus ” means any apparatus, appliance, conduit, duct or structure belonging to the authority and used for or in connection with the services provided by them for the operation of the airport and includes any structure used for the lodging therein of apparatus but does not include any apparatus used for the purposes of navigation services (as defined in the Airports Authority Act, 1965);

1965 c. 16.

“ construction ” includes reconstruction and for the purposes of paragraphs (10) to (15) (inclusive) of this section includes maintenance and repair of the works;

“ the central station works ” means so much of the works as is coloured blue on the signed plan or, if that part of the works is to be constructed in some other line or situation or is otherwise proposed to be altered, that part as proposed to be constructed in accordance with the plans thereof approved, deemed to be approved or settled by arbitration under paragraph (6) of this section;

“ plans ” includes sections, drawings, specifications and particulars (including particulars as to the method of constructing any work to which the plans relate);

“ the signed plan ” means the plan of the works signed in duplicate by Frank Stephen Powell Turner on behalf of the Board and by Victor Percy Harries on behalf of the authority, one copy of which has been deposited with the Board and the other with the authority;

“ the works ” means so much of Work No. 1 and any work or convenience connected therewith as may be situated upon, across, under or over or may in any way affect the airport property and includes the construction of such works:

(2) The Board shall not under the powers of this Act acquire compulsorily any airport property except—

(a) such land as may be reasonably required for the purposes of—

- (i) a station at Hatton Cross;
- (ii) an electricity substation;

(iii) one or more ventilating shafts;

(iv) the approach to the tunnel between the eastern boundary of the airport and the tunnel portal in the approximate position shown on Sheet No. 5 of the deposited plans;

in such positions and to such extent as may be reasonably required for the construction of those works;

(b) a freehold interest in the subsoil or under-surface of such land (not being land referred to in sub-paragraph (a) (iv) of this paragraph) as may be reasonably required for so much of the works as are to be constructed below ground level;

(c) in accordance with the provisions of section 11 (Power to acquire subsoil or easements only in certain cases) of this Act, such easements and rights as they may reasonably require for the purposes of the works or for obtaining access thereto in any such property delineated on the deposited plans, but (except in the case of an easement or right required for obtaining access on the surface to any of the works) such easements or rights shall be restricted to the subsoil and undersurface of the land in respect of which they are granted:

- (3) Notwithstanding anything in the Lands Clauses Acts the authority may, after service of notice to treat for any land which the Board are authorised by this section to acquire compulsorily from time to time make separate claims for the value of any such land and for the injurious affection of any land of the authority not so taken:

Provided that no claim as aforesaid shall be made after the expiration of a period of two years from the date of the opening for public traffic of Work No. 1:

- (4) Notwithstanding anything shown on the deposited plans or sections the Board in constructing the works shall not—

(a) in relation to so much of the works as lies between the points marked “A” and “B” on the signed plan deviate laterally beyond the limits of deviation shown on that plan;

(b) in relation to so much of the works as is to be constructed on the airport deviate upwards from the levels shown on the deposited sections to a greater extent than 5 feet:

PART IV
—cont.

(5) The works shall be so constructed as to have such load-bearing capacity as may be specified by the authority at or before the time of construction of the works and different load-bearing capacities may be specified for different parts of the works:

(6) The Board shall, before commencing the works, furnish to the authority for their reasonable approval proper and sufficient plans thereof and a statement of the time or times at which and the order in which the works are to be constructed and shall not commence the works until the plans thereof, the time or times at which and the order in which they are to be constructed have been approved in writing by the authority or settled by arbitration:

Provided that if within twenty-eight days after such plans and statement have been furnished to the authority the authority shall not have intimated their disapproval thereof and the grounds of their disapproval they shall be deemed to have approved the same:

(7) Upon signifying their approval or disapproval of the plans the authority may specify any protective works, whether temporary or permanent, which in their opinion should be carried out before the commencement or during the construction of the works to ensure the safety or stability of airport property and such protective works as may be reasonably necessary for those purposes shall be constructed with all reasonable dispatch and the Board shall not commence the construction of the works until the authority shall have notified the Board that any protective works required to be constructed before the commencement of the works have been completed:

(8) (a) Upon signifying approval or disapproval of the plans the authority may give notice to the Board that they desire themselves—

(A) to construct the central station works except—

(i) the running tunnels and any works or railway apparatus comprised therein;

(ii) any other works below the structural floor or deck above the railway tracks;

(iii) any works for providing access from such other works to the station platforms;

(iv) any works consisting of the installation of specialised railway equipment;

(B) to carry out any of the protective works referred to in the last foregoing paragraph;

(C) to alter, remove or replace any apparatus affected by the construction of the works;

(D) to reinstate any runway, road or other pavement;

and any works or other operations in respect of which notice has been given by the authority under this paragraph shall be carried out by the authority with all reasonable dispatch and in accordance with plans submitted to and reasonably approved by the Board;

(b) Paragraph (6) of this section shall apply to any plans submitted by the authority to the Board under this paragraph as it applies to plans submitted by the Board to the authority:

(9) The Board shall give to the authority twenty-eight days' notice of their intention to commence the construction of any of the works and also, except in emergency (when they shall give such notice as may be reasonably practicable), of their intention to carry out any works for the repair or maintenance of the works in so far as such works of repair or maintenance affect or interfere with airport property:

(10) The works shall, when commenced, be constructed with all reasonable dispatch in accordance with the plans approved, deemed to be approved or settled by arbitration in accordance with paragraph (6) of this section and in such manner as to cause as little damage as may be to airport property and as little interference as may be with the operation of the airport and if any damage to airport property or any such interference shall be caused by the construction of the works the Board shall, notwithstanding any such approval as aforesaid, make good such damage and shall pay to the authority all reasonable costs and expenses to which they may be put by reason of any such damage or interference:

Provided that nothing in this paragraph shall impose any liability on the Board with respect to any damage, costs or expenses which is attributable to the act, neglect or default of the authority or their servants, contractors or agents:

(11) The Board shall at all times afford reasonable facilities to the authority for access to the works during their construction and shall supply them with all such information as they may reasonably require with regard

PART IV
—cont.

to the works, the method of construction and the time or times at which and the order in which they are to be constructed:

- (12) The authority shall be entitled to supervise the construction of the works for the purpose of ensuring the safe operation of the airport:
- (13) The authority shall at all times afford reasonable facilities to the Board and their agents for access to any works carried out by the authority under this section during their construction and shall supply the Board with such information as they may reasonably require with regard to such works or the method of construction thereof:
- (14) The Board shall repay to the authority all costs, charges and expenses reasonably incurred by the authority—
 - (a) in constructing any works or carrying out any operations on behalf of the Board under paragraph (8) of this section including, in respect of the central station works or any permanent protective works, a capitalised sum representing the cost to the authority of maintaining and renewing such works;
 - (b) in respect of the employment of any inspectors and other persons whom it shall be reasonably necessary to appoint for inspecting and guarding airport property and for preventing, as far as may be reasonably practicable, interference, obstruction, danger or accident arising from the construction or failure of the works;
 - (c) in respect of any additional temporary lighting of airport property in the vicinity of the works, being lighting made reasonably necessary during and by reason of the construction or failure of the works;
 - (d) in respect of the supervision of the works under paragraph (12) of this section:
- (15) The Board shall be responsible for and make good to the authority all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to or reasonably incurred by the authority by reason of the failure of the works or of any act or omission of the Board or of any persons in their employ or of their contractors or others whilst engaged upon the construction of the works and the Board shall effectively indemnify and hold harmless the authority from and against all claims and demands arising out of or in connection with the construction of the works or any such failure, act or omission as aforesaid and the fact

that any act or thing may have been done by the authority on behalf of the Board, or in accordance with plans approved by the authority, or in accordance with any requirement of the authority or under the supervision of the authority, shall not (if it was done without negligence on the part of the authority or of any person in their employ or of their contractors or agents whilst engaged upon the construction of the works) excuse the Board from any liability under the provisions of this section:

PART IV
—cont.

Provided that the authority shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (16) The Board shall not in exercise of the powers of section 15 (Power to make trial holes) of the Act of 1963 (as incorporated with this Act) make any trial holes on any airport property without first obtaining the consent of the authority but such consent shall not be unreasonably withheld and the authority may attach thereto such reasonable terms and conditions as they think fit:
- (17) (a) Subject to the provisions of this paragraph the powers by this Act conferred for making and completing the works shall cease (except as to so much thereof as is then completed) on 31st December, 1972;
- (b) If on 1st January, 1968, or at any time thereafter the authority decide that the construction of the central station works must take place and be completed at the same time, so far as reasonably practicable, as the construction by the authority or the British Railways Board or both of them of other works adjacent thereto and serve a notice on the Board requiring the Board to commence the construction of the central station works within such period (not being less than six months) as may be prescribed in the notice (hereinafter in this paragraph referred to as “the prescribed period”) then—
 - (i) if the Board do not commence the construction of the central station works within the prescribed period, the powers by this Act conferred for making and completing the works shall not thereafter, except with the consent of the authority, be exercisable by the Board (except as to so much thereof as is then completed);
 - (ii) if the Board do commence the construction of the central station works within the prescribed period and complete them with all reasonable dispatch, the

PART IV
—cont—

powers by this Act conferred for making the works shall cease (except as to so much thereof as is then completed) on the expiration of a period of fifty-four months commencing with the date on which the prescribed period expires;

- (c) If the authority give notice under paragraph (8) of this section that they wish to construct so much of the central station works as is referred to in that paragraph then, as from the date of that notice, the foregoing provisions of this paragraph shall cease to apply to that part of the central station works:

1965 c. 16.

- (18) Nothing in this Act shall be construed as excluding or limiting the application of any byelaws under section 9 (Byelaws) of the Airports Authority Act, 1965, for the time being in force or as authorising the doing of any thing which is regulated or restricted by those byelaws except in accordance with the provisions thereof:

Provided that the byelaws shall not have effect so as to prohibit the construction of any of the works or the doing of any other thing if constructed or done with the permission of the authority and the authority shall be deemed to have given their permission to the construction of any such work or the doing of any other thing if constructed or done in accordance with the provisions of this section:

- (19) Any difference arising between the Board and the authority under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection
of British
Railways
Board.

20. The following provisions for the protection of the British Railways Board (in this section referred to as “the railways board”) shall, notwithstanding anything in this Act and unless otherwise agreed in writing between the Board and the railways board, apply and have effect:—

1967 c. xxx.

- (1) The Board shall not enter upon, take or use any lands of the railways board or in respect of which the railways board have compulsory rights of acquisition by virtue of the provisions of the British Railways Act, 1967, without the previous consent in writing of the railways board which consent shall not be unreasonably withheld and subject to such terms and conditions as the railways board may reasonably impose, provided that in the event of an arbitrator deciding that consent has been unreasonably withheld the same shall be deemed to have been given:

- (2) The Board shall not construct Work No. 1 so far as the same is to be constructed in, over, under or in any way affecting any property of the railways board or lands in respect of which the said board have compulsory rights of acquisition under the British Railways Act, 1967, except in accordance with such terms and conditions and such plans, sections and specifications as shall previously be agreed between the Board and the railways board: PART IV
—cont.
1967 c. xxx.
- (3) Any consent given or terms and conditions imposed by the railways board under paragraph (1) of this section or any terms or conditions or plans, sections and specifications to be agreed between the Board and the railways board under paragraph (2) of this section shall take account of any obligation to any other person to which the Board may be subject in respect of such lands or in respect of the construction of Work No. 1:
- (4) Any difference which shall arise between the Board and the railways board under this section shall be settled by arbitration.

21. For the protection of the mayor, aldermen and burgesses of the London borough of Hounslow (in this section referred to as “the corporation”) the following provisions shall, unless otherwise agreed in writing between the Board and the corporation, apply and have effect:— For protection
of Hounslow
Corporation.

(1) (a) In this section—

“highway” means a highway vested in or repairable or maintained by the corporation other than a highway which is for the time being a metropolitan road or a highway for which, under the London Government Act, 1963, the Minister is the highway authority; 1963 c. 33.

“sewer” means a sewer vested in or under the jurisdiction or control of the corporation;

- (b) The works to which this section applies are so much of Work No. 1 and the works and conveniences connected therewith authorised by this Act as is in or under a highway or may affect a highway or sewer:
- (2) Wherever in this section provision is made with respect to the consent of the corporation such consent shall be in writing and may be given under the hand of the town clerk subject to such reasonable terms and conditions as the corporation may require, but shall not be unreasonably withheld:

PART IV
—cont.

- (3) (a) Before commencing to construct any part of the works to which this section applies the Board shall—
- (i) submit to the corporation for their reasonable approval plans and particulars relating thereto; and
 - (ii) consult the corporation as to the time when such part shall be commenced, and as to the extent of the surface of the highway which it may be reasonably necessary for the Board to occupy in the construction of such part, and as to the conditions under which such part shall be constructed so as to reduce so far as possible inconvenience to the public and to ensure the safety of the public, and such part shall not be constructed and the surface of the highway shall not be occupied by the Board except at the time, to the extent and in accordance with conditions agreed between the Board and the corporation or in default of agreement settled by arbitration;
- (b) The plans and particulars to be submitted to the corporation for the purposes of this section shall be plans, drawings, sections and particulars which shall describe the position and manner in which, and the level at which, the works to which they relate are proposed to be constructed and shall so far as practicable accurately describe the position of all sewers within the limits of deviation of the said works (for which purpose the corporation shall allow the Board access to plans in their possession and to any of their sewers to enable the Board to obtain information with respect thereto) and shall comprise detailed drawings of any alteration which the Board may propose to make in any sewer:
- (4) No part of the works to which this section applies shall be constructed otherwise than in accordance with such plans and particulars as may be approved by the corporation under paragraph (3) of this section (or, if such approval be refused, as may be settled by arbitration) and in accordance with such reasonable conditions as may be imposed by the corporation:

Provided that if within twenty-eight days after the submission to them of plans and particulars under paragraph (3) of this section the corporation do not signify to the Board their approval thereof, with or without conditions, or their disapproval thereof they shall be deemed to have approved them unconditionally:

- (5) The corporation may require such modifications to be made in the said plans and particulars as may be reasonably necessary to secure their drainage system

against interference or risk of damage and to provide and secure proper and convenient means of access to the sewers:

PART IV
—cont.

- (6) In the execution of the works to which this section applies the Board shall comply with and conform to all orders, directions and regulations which the corporation may reasonably make and shall provide new, altered or substituted works in such manner as the corporation shall reasonably require for the proper protection of, and for preventing injury to, obstruction of, or obstruction of the access to, any sewer and shall indemnify the corporation against all expenses to be occasioned thereby:
- (7) All such new, altered or substituted works shall where so required by the corporation be done by or under the direction, superintendence and control of the engineer, or other officer of the corporation, at the cost in all respects of the Board and all costs, charges and expenses to which the corporation may be put by reason of such works, whether in the execution of works, the preparation or examination of plans or designs, superintendence or otherwise shall be paid to the corporation by the Board:
- (8) It shall be lawful for the engineer or surveyor or other officer of the corporation duly appointed for the purpose at all reasonable times to enter upon and inspect any part of the works to which this section applies, or any such new, altered or substituted works, in, under or affecting any highway or which may affect any property of the corporation during the execution thereof, and the Board shall give to such engineer or surveyor or officer all reasonable facilities for such inspection, and if he shall be of opinion that the construction of such works is attended with danger to any highway or to any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign and apparatus connected therewith or work belonging to or under the jurisdiction or control of the corporation the Board shall adopt such measures and precautions as may be reasonably necessary for the purpose of preventing any damage or injury thereto:
- (9) When any such new, altered or substituted works or any works for the protection of any sewer connected therewith shall be completed under the provisions of this section the same shall thereafter be as fully and completely under the direction, jurisdiction and control of the corporation as their existing sewers:

PART IV
—cont.

- (10) In the construction of any part of the works to which this section applies under a highway, no part thereof shall (except with the consent of the corporation) be so constructed as to interfere with the provision of proper means of drainage of the surface of any highway nor, except with such consent as aforesaid be nearer than 2 feet 6 inches to the surface of any highway:
- (11) The works to which this section applies, so far as they involve any serious interference with the movement of traffic in any highway, shall after the commencement thereof be carried on as expeditiously as reasonably practicable and the Board shall take all such steps as may be reasonably necessary to reduce as far as possible the period of such interference:
- (12) Nothing in this Act shall extend to prejudice, diminish, alter or take away any of the rights, powers or authorities vested, or to be vested, in the corporation in relation to sewers but all such rights, powers and authorities shall be as valid and effectual as if this Act had not been passed:
- (13) The corporation may require the Board in constructing the works to which this section applies to make any reasonable deviations within the limits of deviation of such works from the line or levels proposed by the Board for the purpose of avoiding injury or risk of injury to the sewers of the corporation and the Board shall in constructing such works deviate accordingly:
- (14) At least fourteen days before commencing any vertical borings from the surface of any part of any highway the Board shall serve notice in writing on the corporation of their intention to commence the same, and such notice shall describe the place or places at which such borings are intended to be made, and if within fourteen days after the receipt of such notice any objection is made by the corporation the matter shall (unless otherwise agreed) be settled by arbitration before the boring is commenced, but if no such objection is made the said borings may be proceeded with:
- (15) The Board shall secure that so much of the works to which this section applies as is constructed under or so as to affect any highway shall be designed, constructed and maintained so as to carry the maximum loading recommended by the Minister for highway bridges at the time of the construction of the railway and the Board shall indemnify the corporation against, and make good to the corporation, all expenses which the

corporation may reasonably incur or be put to in the maintenance or repair of any highway or any tunnels, sewers, drains or apparatus therein by reason of any non-compliance by the Board with the provisions of this paragraph:

- (16) The Board shall, if reasonably so required by the corporation, provide and maintain to the reasonable satisfaction of the corporation, during such time as the Board may occupy any part of a highway, for the purpose of the construction of any part of the works to which this section applies, temporary bridges and temporary ramps for vehicular traffic or pedestrian traffic, or both, over any part of the works or in such other position as may be necessary to prevent interference with the flow of traffic in any highway:
- (17) The Board shall not alter, disturb or in any way interfere with any sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work of the corporation, or under the control of or repairable by them, or the access thereto, without the consent of the corporation and any alteration, diversion, replacement or reconstruction of any such sanitary convenience, refuge, sewer, drain, lamp column, traffic sign or apparatus connected therewith or other property or work which may be necessary shall be made by the corporation or the Board, as the corporation shall think fit, and any costs and expenses reasonably incurred by the corporation in so doing shall be repaid to the corporation by the Board:
- (18) The Board shall not remove any soil or material from any highway except such as must be excavated in the carrying out of the works to which this section applies:
- (19) If any extra expense be incurred by the corporation for the repair of any highway by reason of the diversion thereto of traffic from a road of a higher classification in consequence of the making or construction of the works to which this section applies, the Board shall repay the amount of such expenses to the corporation:

Provided that prior notice of the diversion has been given to the Board:

- (20) The Board shall not, except with the consent of the corporation, deposit any soil, subsoil or materials or stand any vehicle or plant on any highway so as to

PART IV
—cont.

obstruct the use of such highway by any person or, except with the like consent, deposit any soil, subsoil or materials on any such highway except within a hoarding:

- (21) All reasonable costs, charges and expenses incurred by the corporation in removing any soil deposited on any highway in contravention of this section shall be a debt due to the corporation and shall be paid by the Board to the corporation:
- (22) Where any part of any highway shall have been temporarily broken up or disturbed by the Board the Board shall make good the subsoil, foundations and surface of such part of the highway to the reasonable satisfaction of the corporation:

Provided that the reinstatement of such part of the highway shall in the first instance be of a temporary nature only and the permanent reinstatement thereof shall be carried out by the corporation as soon as practicable after the completion of the temporary reinstatement and the reasonable cost incurred by the corporation in so doing shall be repaid by the Board to the corporation:

- (23) It shall not be lawful for the Board to place any hoardings on any part of the highway except for such period as may be necessary and then only in such manner as shall be reasonably necessary and the provisions of the Highways Act, 1959, relating to hoardings shall apply to any hoarding erected on any part of any highway and for the purposes of the application of section 147 of the said Act of 1959 any such hoarding shall be deemed to have been erected in compliance with subsection (1) of that section:
- (24) The Board shall be responsible for and make good to the corporation all costs, charges, damages and expenses not otherwise provided for in this section which may be occasioned to, or reasonably incurred by, the corporation (a) in respect of damage to property of the corporation by reason of the construction of the works to which this section applies, or the failure thereof, or (b) by reason of any act or omission of the Board or of any persons in their employ or of their contractors, agents or others whilst engaged upon the construction of the works to which this section applies, and the Board shall effectively indemnify and hold harmless the corporation from and against all claims and demands arising out of, or in connection with, the construction of the works to which this section applies, or any such

PART IV
—cont.

act or omission as aforesaid, and the fact that any work or thing may have been done by the corporation on behalf of the Board, or in accordance with plans and particulars approved by the corporation, or in accordance with any requirement of, or condition, order, direction or regulation made by, the corporation, or under the superintendence of the engineer or other officer of the corporation, shall not (if it was done without negligence on the part of the corporation or of any person in their employ or of their contractors or agents) excuse the Board from any liability under this section:

Provided that the corporation shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent of the Board:

- (25) Within three months after the completion of any of the works to which this section applies or such longer period as the corporation may agree the Board shall remove or to the reasonable satisfaction of the corporation demolish or otherwise dispose of all temporary buildings and structures erected for the purposes of, or in connection with the construction of that work and shall remove all surplus materials, plant, machinery and appliances provided or approved in connection therewith and shall so far as is reasonably practicable to the like satisfaction restore and make good the surface of the ground on which any temporary buildings and structures or any surplus materials, plant, machinery and appliances as aforesaid have been placed or which may have been occupied for the purpose of or in connection with that work:
- (26) As soon as reasonably practicable after the completion of any part of the works to which this section applies, the Board shall furnish the corporation with a plan and section showing the position and level of such part of the works as constructed:
- (27) Any difference arising between the Board and the corporation under this section shall be settled by arbitration:
- (28) The Board shall carefully preserve and remove all objects of geological or antiquarian interest discovered by them in the execution of the works in the London borough of Hounslow and, subject to the rights of the Crown and except so far as the same may be proved to be the property of any other person, any such objects shall be deposited with the corporation, as the property of the corporation.

PART IV

—cont.

For protection
of Greater
London
Council.

22.—(1) For the protection of the council the following provisions shall, unless otherwise agreed in writing between the Board and the council, apply and have effect.

(2) (a) Before commencing any river work the Board shall submit to the council plans, sections and particulars, and other details of their proposals, with respect to the river work for their approval (which approval shall not be unreasonably withheld):

Provided that approval may not be refused by the council on the ground that any river work is to be constructed over the river Crane.

(b) If the council do not within twenty-eight days of the submission to them of any plans, sections, particulars or other details under this subsection give notice to the Board of their approval or disapproval they shall be deemed to have approved them.

(3) In this section, except as otherwise expressly provided or unless the context otherwise requires—

“ the council ” means the Greater London Council;

“ the river ” means the river Crane together with the bed and washlands thereof;

“ river work ” means any work or part of a work in, on, over or under the river constructed or to be constructed by the Board on any of the lands numbered 7, 8 and 9 on the deposited plans for the London borough of Hounslow.

(4) Any difference arising between the Board and the council under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

For protection
of Shell-Mex
and B.P.
Limited.

23. For the protection of Shell-Mex and B.P. Limited (hereinafter referred to as “ the company ”) the following provisions shall, unless otherwise agreed in writing between the Board and the company, apply and have effect:—

(1) In this section, unless the subject or context otherwise requires—

“ in ” in a context referring to a pipeline includes under, over, across, along or upon;

“ pipeline ” means any pipeline belonging to or maintained by the company and includes any ancillary works and apparatus:

- (2) Notwithstanding anything in this Act or shown on the deposited plans the Board shall not acquire any pipeline under the powers of this Act otherwise than by agreement:
- (3) Notwithstanding anything in this Act no pipeline shall be removed from any land in which it is situated, nor shall any right of the company to use, maintain, repair, renew or inspect any pipeline in that land be extinguished, until any necessary alternative pipeline has been provided and is in operation to the reasonable satisfaction of the company:
- (4) The Board shall repay to the company the reasonable expenses incurred by the company in or in connection with—
 - (a) the removal and relaying or replacing of any pipeline and the provision, laying down or placing of any new pipeline rendered necessary by reason or in consequence of the construction of any of the works;
 - (b) the cutting off of any pipeline;
 - (c) the superintending or watching and inspecting any of the works which is near to or is likely to affect any pipeline; and
 - (d) any other work or thing rendered reasonably necessary in consequence of the operations referred to in this paragraph:
- (5) If by reason or in consequence of any of the works or any subsidence resulting therefrom any damage to any pipeline shall be caused, the Board shall—
 - (a) make reasonable compensation to the company for any loss sustained or additional expense incurred by them; and
 - (b) indemnify the company against all claims, demands, proceedings, costs, damages and expenses which may be made or taken against or recovered from or incurred by the company;

by reason or in consequence of any such damage:

Provided that—

- (i) nothing in this paragraph shall impose any liability on the Board with respect to any damage which may be attributable to the act, neglect or default of the company or their contractors or workmen;

PART IV
—cont.

(ii) the company shall give to the Board reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the prior consent in writing of the Board:

- (6) Any difference which may arise between the Board and the company under this section shall be referred to and determined by arbitration.

PART V

MISCELLANEOUS

Extensions of
time.

24.—(1) The period now limited by the Act of 1964 for the compulsory purchase of the lands authorised to be acquired by section 27 (Power to acquire lands) of the Act of 1961 for the purposes of Works Nos. 6 and 7 authorised by Part II (Works) of the Act of 1961 is hereby extended until 31st December, 1970.

(2) The period now limited by the Act of 1964 for the compulsory purchase of lands authorised to be acquired by section 10 (Power to acquire lands) of the Act of 1964 for the purpose of the reconstruction and improvement of Battersea Garage and for the purposes of Work No. 2 authorised by Part II (Works) of the Act of 1964 is hereby extended until 31st December, 1970.

(3) In this section the word “lands” includes any easements or rights in, under or over land authorised to be acquired by the Act of 1961 and the Act of 1964.

Powers to
owners and
lessees to give
notice as to
purchase of
lands.

25.—(1) In this section—

“the enabling Act” means the Act of 1964;

“the land” means any land which is for the time being authorised to be acquired compulsorily by the Board by the enabling Act not being land referred to in subsection (4) of this section;

“lessee” means a lessee under a lease having a period of not less than twenty-one years to run at the date of his notice under subsection (2) of this section.

(2) If at any time after 31st December, 1967, any person being the owner or lessee of any of the land shall give notice in writing to the Board of his desire for the acquisition as soon as may be by the Board of his interest in any part of the land specified in the notice the Board shall within a period of three months after the receipt of such notice—

(a) enter into a contract with such person for the acquisition of his interest in the land or such part thereof as may be specified in the contract; or

(b) serve a notice to treat on such person for the compulsory acquisition of his interest in the land specified in his notice or in such part thereof as may be required by the Board; or

(c) serve on such person notice in writing of their intention not to proceed with the purchase of his interest in the land specified in his notice.

(3) Where notice is given under the last foregoing subsection by an owner or lessee of land specified in the notice then—

(a) if the Board—

(i) fail to comply with that subsection; or

(ii) withdraw in pursuance of any statutory provision a notice to treat served on him in compliance with paragraph (b) of that subsection; or

(iii) serve notice on him in compliance with paragraph (c) of that subsection;

the powers conferred by the enabling Act for the compulsory purchase of his interest in the land so specified shall cease;

(b) if his interest in part only of the land so specified is acquired in pursuance of such a notice to treat the powers conferred by the enabling Act for the compulsory purchase of his interest in the remainder of the land so specified shall cease.

(4) This section shall not apply to land which the Board are by the enabling Act authorised to acquire for the purposes of a work which is shown on the sections deposited in respect of the Bill for the enabling Act as intended to be constructed under the surface of such land.

26. The provisions of the Town and Country Planning Act, 1962, and any restrictions or powers thereby imposed or conferred, in relation to land, shall apply and may be exercised in relation to any land notwithstanding that the development thereof is, or may be, authorised or regulated by or under this Act. Saving for town and country planning. 1962 c. 38.

27. Where under this Act any difference (other than a difference to which the provisions of the Lands Clauses Acts apply) is to be referred to or settled by arbitration, then, unless otherwise provided, such difference shall be referred to and settled by a single arbitrator to be agreed between the parties or, failing agreement, to be appointed, on the application of either party (after notice in writing to the other), by the President of the Institution of Civil Engineers. Arbitration.

28. All costs, charges and expenses of and incident to the preparing for, obtaining and passing of this Act or otherwise in relation thereto, shall be paid by the Board and may in whole or in part be defrayed out of revenue. Costs of Act.

SCHEDULE

Section 11.

DESCRIBING PROPERTIES IN RESPECT OF WHICH SUBSOIL OR EASEMENTS
MAY BE TAKEN AS PROVIDED BY SECTION 11 (POWER TO ACQUIRE SUBSOIL
OR EASEMENTS ONLY IN CERTAIN CASES) OF THIS ACT

Area (1)	No. on deposited plans (2)
WORK No. 1	
London borough of Hillingdon	1
London borough of Hounslow	1, 3, 4, 5, 7, 8, 9, 10, 11, 12, 15, 16, 19 to 57, 60, 61, 63, 64, 68.

PRINTED BY THE SOLICITORS' LAW STATIONERY SOCIETY, LTD., FOR
SIR PERCY FAULKNER, K.B.E., C.B.
Controller of Her Majesty's Stationery Office and Queen's Printer of Acts of Parliament

London Transport Act 1967

CHAPTER xxxix

ARRANGEMENT OF SECTIONS

PART I

Section

PRELIMINARY

1. Short title.
2. Division of Act into Parts.
3. Interpretation.
4. Incorporation of general Acts.

PART II

WORKS

5. Power to make works.
6. Power to deviate.
7. Power to open surface of streets.
8. Stopping up and diversion of private roads.
9. Incorporation of provisions of Acts of 1963 and 1965 relating to works.

PART III

Section LANDS

10. Power to acquire lands.
11. Power to acquire subsoil or easements only in certain cases.
12. Temporary possession of land.
13. Temporary closure of footpath.
14. Period for compulsory purchase of lands and easements.
15. Incorporation of provisions of Acts of 1963, 1964, 1965 and 1966 relating to lands.

PART IV

PROTECTIVE PROVISIONS

16. Incorporation of protective provisions of Acts of 1963 and 1965.
17. Crown rights.
18. For protection of Postmaster General.
19. For protection of British Airports Authority.
20. For protection of British Railways Board.
21. For protection of Hounslow Corporation.
22. For protection of Greater London Council.
23. For protection of Shell-Mex and B.P. Limited.

PART V

MISCELLANEOUS

24. Extensions of time.
25. Powers to owners and lessees to give notice as to purchase of lands.
26. Saving for town and country planning.
27. Arbitration.
28. Costs of Act.

SCHEDULE—Describing properties in respect of which subsoil or easements may be taken as provided by section 11 (Power to acquire subsoil or easements only in certain cases) of this Act.